

209 U. S.

Argument for Respondent.

109 Fed. Rep. 694; *Copper Co. v. Freer, Attorney General*, 127 Fed. Rep. 199; *Coneter v. Weir*, 127 Fed. Rep. 897; *Coulter v. Fargo*, 127 Fed. Rep. 912; *Hitchesen v. Smith*, 140 Fed. Rep. 983; *Smith v. Alexander*, 146 Fed. Rep. 106; *Telegraph Co. v. Anderson*, 154 Fed. Rep. 95.

By leave of court, Mr. Edward B. Whitney filed a brief herein as *amicus curiæ*, in support of petitioner's contentions as to the Eleventh Amendment. With him on this brief was Mr. Abel E. Blackmar.

Mr. Charles W. Bunn, Mr. Jared How and Mr. J. F. McGee, with whom Mr. Frank B. Kellogg, Mr. Cordenio A. Severance, Mr. Robert E. Olds, Mr. Stiles W. Burr, Mr. Pierce Butler, Mr. William D. Mitchell and Mr. William A. Lancaster were on the briefs, for respondent:

The objections which petitioner makes against the validity of the injunctive order are matters which cannot be inquired into on writ of *habeas corpus*.

Where the contempt, the punishment for which is under review in a *habeas corpus* proceeding, consists of the violation of an order or decree of a court, the commitment will be sustained unless it is found that the order or decree disobeyed was absolutely void because the court was wholly without jurisdiction or power to make it. The proceeding being in the nature of a collateral attack upon the order or judgment which has been disobeyed, the inquiry is limited to the question of jurisdiction. *Ex parte Watkins*, 3 Pet. 193; *In re Coy*, 127 U. S. 731, 757; *In re Wilson*, 140 U. S. 575, 583.

Among the very numerous cases which deal with this question the following are most nearly in point: *Ex parte Watkins*, 3 Pet. 193; *Ex parte Yarbrough*, 110 U. S. 651; *In re Coy*, 127 U. S. 731, 756; *In re Wilson*, 140 U. S. 575, 582; *In re Delgado*, 140 U. S. 586; *In re Schneider*, 148 U. S. 162; *In re Fredrich*, 149 U. S. 70, 76; *In re Tyler*, 149 U. S. 164, 180; *In re Swan*, 150 U. S. 637, 648; *In re Chapman*, 156 U. S. 211; *In re Lennon*, 166 U. S. 548; *In re McKenzie*, 180 U. S. 536.